FROM WELFARE TO JUSTICE
The Continuity of Human Authority over Animals

I. Introduction

This text examines the thesis that the justice framework, or animal rights approach as it is commonly used today in connection with veganism, does not overcome the animal welfare approach, but rather constitutes its structural continuation.

Within the discourse on the human-animal relationship, a development can be traced from protecting animals from cruelty toward attributing claims or rights to them, thereby elevating animals from objects of human care to subjects within a moral order.

At first glance, this development appears to represent a structural break. It suggests that not only the language, but also the underlying relationship between humans and animals has fundamentally changed. This text argues the opposite: the justice framework or animal rights approach does not break with the structure of the human–animal relationship embedded in animal welfare, but stabilises it.

II. The Modern Animal Welfare Approach

With the introduction of legal measures such as the Cruel Treatment of Cattle Act of 1822, an animal welfare approach emerges in the 19th century that prohibits cruelty in the treatment of animals without fundamentally questioning their use.These developments are often interpreted as early milestones of moral progress for animals. Yet their internal structure reveals a different picture: they do not call the use of animals itself into question.

“[…] if any person shall wantonly and cruelly beat or ill-treat any horse, mare, gelding, mule, ass, ox, cow, heifer, steer, sheep, or other cattle, every such offender shall for every such offence forfeit and pay a penalty. […] any person having the care or charge of any such animal […]” 1

Instead, they introduce restrictions on how animals may be treated within an already accepted framework of use. Animals appear here as beings under human authority or ownership, whose treatment is regulated. The focus lies not on the animals themselves, but on the behaviour of those who exercise authority over them.

This establishes a relationship in which humans define what constitutes appropriate treatment for animals. The relevant norms determine the limits of permissible treatment and remain under exclusive human authority. Animal welfare therefore does not interrupt human domination; it merely organises it in a supposedly less cruel form.

III. The Animal Rights Approach and the Justice Framework

The emergence of modern animal ethics in the late 20th century is usually interpreted as a response to this problem. Central texts such as *Animal Liberation* and *The Case for Animal Rights* introduce a new conceptual vocabulary in which animals no longer appear merely as recipients of protection, but as bearers of interests, as subjects of rights, and as members of a moral community.

“The principle of equal consideration of interests requires that the interests of every being affected by an action be taken into account and given the same weight as the like interests of any other being.” 2

“Sentient beings have interests. Interests are the basis of moral rights. To say that a being has moral rights is to say that we are morally obligated to respect those interests.” 3

At first glance, this seems to mark a decisive break. Animals are no longer merely protected from harm; they are attributed claims that must be taken into account. The language of justice suggests a movement beyond paternalistic care toward recognition and inclusion. It presents itself as a break with earlier frameworks that treated animals primarily as objects of human responsibility.

The introduction of animal rights, or the description of animals as legal subjects, appears at first to represent a fundamental change. Animals are no longer described merely as objects of human care, but as independent points of moral consideration. However, this change does not affect the underlying relationship between humans and animals, but rather the way in which it is described.

Rights are not properties that animals possess independently; they are attributions within a normative framework. This framework remains unchanged in its constitution: the definition of rights, their content, their interpretation in concrete cases, and their enforcement all remain with those who establish and maintain this framework – humans.

The introduction of rights therefore does not alter the position of animals, but reorganises the form in which authority over them is exercised. Instead of explicitly regulating their treatment, a framework emerges in which claims are formulated, weighed, and decided upon, without abolishing the underlying authority over animals. In this way, animals remain embedded in a system that determines over them without questioning the conditions of that system itself.

Even when described as “subjects of rights,” animals remain, in practice, objects of human authority.

IV. The Significance of the Justice Framework for Animals

The decisive question is not how animals are perceived or described, but how the structure of the relationship is organised. Justice does not simply denote moral consideration. It presupposes a specific constellation in which claims are attributed, evaluated, and decided within a shared normative framework. Such a framework requires an authority that determines the scope of these claims, interprets their meaning, and resolves conflicts between them.

The justice framework operates through claims, responsibilities, and legitimised decision-making. The inclusion of animals within this framework does not remove its underlying conditions. Even if animals are described as rights-bearers, the question of what these rights mean, how they are to be applied, and under what conditions they may be restricted or overridden remains entirely under human authority.

The resulting relationship is therefore not one in which authority is relinquished and animals become emancipated individuals, but one in which human authority over animals is preserved and merely reorganised. Humans continue to define the conditions of the relationship, interpret its content, and enforce its limits. The position of animals does not change; they remain embedded in a system constituted, maintained, and governed by humans. This is not emancipation.

V. Continuity of Human Authority over Animals

Neither animal welfare nor the justice framework calls human authority over animals into question. In both cases, animals are integrated into a normative system governed by humans. In both cases, the authority to determine the conditions of their existence remains with humans. What changes is not the underlying order, but only the way in which it is described.

Animal welfare operates in the language of care, compassion, and the avoidance of cruelty. The justice framework, by contrast, operates with concepts such as rights, equality, and fairness. Both remain within an order in which animals are positioned as objects of normative administration—regardless of whether they are labelled “subjects of rights.” The transition from one to the other does not abolish this order; it merely alters its appearance.

VI. Stabilisation of Authority through the Language of Rights

The use of rights language contributes to presenting existing authority over animals in a form that no longer appears as such. Rather than questioning the existing order, it can contribute to its stabilisation. By framing human authority over animals as responsibility, recognition of animal rights, or moral obligation, the exercise of authority becomes less visible and more difficult to challenge. What previously appeared clearly as domination can now appear as care, fairness, or ethical engagement.

Domination does not disappear under conditions of moral critique. It adapts by changing its mode of appearance. The language of justice enables authority to persist in a form that appears not only acceptable, but morally required. “Control appears not as control, but as care. Decision-making appears not as domination, but as responsibility. What is foregrounded is not the relation, but the character of the one who acts.” 4 Critique of the relation of use is not directly refuted; it is merely deflected.

VII. The Rejection of the Claim to Authority – Veganism

In its original conception, veganism is neither a theory of justice, nor a system of rights, nor a framework for moral decision-making. Instead, it is formulated as a principled rejection of the claimed right of humans to use animals.

“Veganism, however, is a principle – that man has no right to exploit creatures for his own ends – and no variation occurs.” 5

This rejection operates on a different level. It does not attempt to regulate, improve, or render the relationship just. It calls into question the legitimacy of the relationship itself. Veganism does not ask how animals should be treated, what they are entitled to, or how their interests should be weighed. It asks whether humans are entitled at all to place themselves in a position from which such questions could be considered legitimate.

This rejection can be expressed in a simple sentence: humans have no right to use animals. “Veganism, however, is a principle – that man has no right to exploit creatures for his own ends – and no variation occurs.” 5

This statement does not formulate a demand within a framework of justice. It does not involve the attribution of claims, their weighing, or their enforcement. It does not open the question of what animals are entitled to or how their interests are to be taken into account. Instead, it negates the very claim from which such questions could arise. In this sense, it is not a matter of justice, but a principle of limitation that marks the point beyond which the

justice framework no longer applies. The use of the term “right” does not make this statement a matter of justice.

VIII. Animal Welfare in a Changed Form

The transition from animal welfare to animal rights is often described as moral progress that brings animals into the domain of justice and thereby grants them freedom. This description obscures the continuity of the underlying relation of domination shared by both approaches. What changes is not the order of the relationship, but merely its linguistic framing.

The justice framework does not mark a break in the relationship. It preserves, refines, and stabilises an order already present in animal welfare: the integration of animals into a normative system constituted by humans. As long as the authority to define, interpret, and enforce the conditions of this order remains intact, the transition from animal welfare to the justice framework does not constitute a break with domination.

The justice framework reveals itself as animal welfare in a changed form.

1. Cruel Treatment of Cattle Act, 1822 (3 Geo. IV, c. 71), §1, https://books.google.com/books?id=0sk0AAAAIAAJ&pg=PA403

2. Animal Liberation, 1975, Peter Singer.

3. Introduction to Animal Rights , 2015, Gary Francione and Anna Charlton.

4. Beyond Vegan, 2026, @sentience_unbound.

5. Veganism Defined, 1951, The Vegan – The Vegan Society, Leslie Cross.